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LINE 1

23-CIV-01641

YAN HE VS. COUNTY OF SAN MATEO, ET AL.

YAN HE
COUNTY OF SAN MATEO

SANJIV N. SINGH
SAN MATEO COUNTY ATTORNEY'S
OFFICE

PLAINTIFF'S MOTION TO SEAL CONFIDENTIAL RECORDS FILED IN SUPPORT OF PLAINTIFFS' MOTION FOR SUMMARY ADJUDICATION AND MOTION IN LIMINE

TENTATIVE RULING:

Plaintiffs' Motion to Seal, Etc. (the "Motion") is GRANTED in part, and DENIED in part.

Background

The operative Fifth Amended Complaint alleges the following allegations in this paragraph: that Decedent infant Brian Pan ("Brian") was born on July 21, 2021, to Plaintiffs Yan He (mother) and Bin Pan (father). On August 7, 2021, while Brian's father was involved in a physical fight with Brian's maternal grandfather, Brian's father seriously injured Brian by dropping him on a table. Three days later, though Brian's father was in police custody without bail, Defendants County of San Mateo, Child Protective Services of San Mateo, and Children and Family Services of County of San Mateo (the "County Defendants") took custody of Brian, his twin, and his toddler brother, and placed the infant twins in the foster care of Defendants James Navarra and Alice Navarra (the "Navarra Defendants"). Plaintiffs allege that Defendant James Navarra was not actually a foster parent. Plaintiffs further allege that Defendants were in their 70s, already had two teenage foster children, had expected to foster only one infant in addition, and were ill-prepared to foster newborn twins in their small house that did not have the required safe-sleeping space for the infants. Plaintiffs allege that on September 13, 2021, shortly after finally having sought respite due to exhaustion, Defendant Alice Navarra had been sleep-deprived for at least 33 days, had drunk alcohol, and when she saw Brian fall asleep in her lap, recklessly decided to fall asleep as well—knowing that Defendant James Navarra was asleep upstairs, and that she had a duty first to place infant Brian in a safe place to sleep, such as a crib. That night, she suffocated Brian to death by allowing herself to fall asleep in the living room couch with him in an unsafe position. The County Defendants had failed repeatedly to evaluate the foster parents and foster home for and after placing them in foster care, including failing to make mandatory visits to the foster home and ensure that it had the required sleep equipment and safe sleep space for each infant. Further, agents of the County Defendants did not disclose to Plaintiffs that the foster parents were the likely cause of Brian's death, instead suggesting that Plaintiff Pan had caused his son's death, so that the County Defendants adopted this narrative to obscure their own liability and facilitate the prosecution of Plaintiff Pan.

Through the Motion, Plaintiffs ask that six exhibits to their counsel's Declaration in support of their motion for summary judgment and motion in limine, which exhibits are lodged with the Court conditionally under seal, be filed under seal.

Plaintiffs' Arguments

Plaintiffs assert that the six exhibits at issue contain the confidential records of a deceased minor, and are subject to this Court's Protective Order issued in connection with a petition pursuant to Welfare and Institutions Code section 827 (the "Protective Order," shown at Charles Decl. in Opp., ¶ 3, & Exh. A). The Protective Order requires that, "Any part of the disclosed records admitted into evidence shall be in a sealed part of the court record." (*Id.*, p.7, in Exh. A.)

Plaintiffs then contradict their assertion as to Exhibits A, A1, A2, and A3, asserting instead that only Exhibits H and I are subject to the Protective Order, and that while the other four are *not* governed by the Protective Order, they pertain to the same person, Brian, whose juvenile records are protected from disclosure, and that the confidentiality interests reflected in the Protective Order apply to these four Exhibits as well.

The County Defendants' Opposition

The County Defendants oppose the Motion as to five of the six exhibits at issue (Exhibits A, A1, A2, A3, and H), asserting that Plaintiffs use the Exhibits to support their motion for summary adjudication as to the medical causation of Brian's death, and their motion *in limine* to exclude any evidence which contradicts the Coroner's determination of its cause. In the event the Court changes its tentative ruling and finds that the records should be sealed, the Court is refraining from going into the specifics of the documents, but in substance, Plaintiffs contend that Brian suffered no complications from his father's having thrown him onto a glass table and the injuries were likely caused at birth or by positional compression asphyxiation.

The Court notes that Exhibit A1 is the supplemental declaration of Daniel Olmos, an attorney, re expert report of Dr. Frank Sheridan, MD which declaration states that the report of Dr. Frank Sheridan, MD is not signed but that the attorney confirms that the report is genuine and authentic. This authentication does not meet the standards for a party bringing a summary judgment. (*Cal.Prac. Guide: Civ. Proc. Before Trial*, §§ 10:107 *et seq.*, 10:118 (TRG June 2026 update); see *Wong v. Stillwater Ins. Co.* (2023) 92 Cal.App.5th 1297, 1324 [discussing admissibility standards for declaration for party opposing summary judgment.].) Since the missing signature is curable (*Walton v. Victor Valley Community College Dist.* (2026) 119 Cal.App.5th 1164, 1170, as modified on denial of reh'g (Apr. 14, 2026), review denied (July. 22, 2026)), and the hearing motion for summary judgment is not until January 12, 2027, Plaintiffs shall file and serve an admissible declaration by Dr. Sheridan attaching his report by October 15, 2026. This note by the Court is not to be taken as an indication that no other evidence has evidentiary issues, but only that the Court noted this curable deficiency and is providing Plaintiffs an opportunity to correct the deficiency before the hearing.

The County Defendants' counsel reviewed Brian's juvenile case records and the Exhibits at issue, and found that Exhibits A, A1, A2, A3, and H are not among the records produced by the Court as part of his case file. (Charles Decl. in Opp., ¶ 5.) The County Defendants labeled the produced records with Bates stamps numbers CFS-827-00001 through CFS-827-01664 (*id.*, ¶ 4), and in turn produced them to all parties with a copy of the Court's Order and the Protective Order. "None of the records Plaintiff asks the court to seal are Bates stamped." (Opp., 2:1-2.) Therefore, these Exhibits are not subject to the Protective Order, nor are they subject to the restrictions of Welfare & Institutions Code Section 827.

Nonetheless, the County Defendants' counsel found Exhibit I to be part of Brian's juvenile case file, so that it is subject to the Protective Order and the statute, and the County Defendants do not oppose its sealing. (Charles Decl. in Opp., ¶ 6.)

The County Defendants further note that Plaintiffs have placed Brian's cause of death directly at issue in both motions and in filing the instant action, thus waiving any confidentiality interest in these records. Specifically, the Court of Appeal explains that:

under current California statutes both the physician-patient privilege and the psychotherapist-patient privilege are subject to a "patient-litigant" exception (see Evid. Code, §§ 996, 1016; cf. Evid. Code, §§ 958, 972, subds. (a), (c)) and, in the constitutional realm, the privilege against self-incrimination has been held to be subject to a similar "waiver" exception as to matters which are directly relevant to litigation commenced by the holder of the privilege.

(*Britt v. Super. Ct.* (1978) 20 Cal.3d 844, 858 (*Britt*) (terminal case citations omitted).) Further:

the waiver of privilege contemplated by the patient-litigant exception "must be construed not as a complete waiver of the privilege but only as a limited waiver ... with respect to *those mental conditions* the patient-litigant has 'disclose[d] ... by bringing an action in which *they* are at issue'"

(*Britt, supra*, 20 Cal.3d 844, 859 (italics in original) (internal quotations and citation omitted).) While this example in *Britt* addresses the psychotherapist-patient privilege, the same principle applies here: Plaintiffs very clearly have placed the cause of Brian's death at issue, both in the motions which the Exhibits are offered to support, and in the instant lawsuit as a whole.

The Navarra Defendants' Opposition

The Navarra Defendants' Opposition is almost entirely identical to that of the County Defendants, except that the Navarra Defendants argue that even though it is subject to the Protective Order, Exhibit I should not be sealed because it goes to Defendant Alice Navarra's testimony that she requested respite from the County Defendants which she never received, while the County Defendants dispute that she requested respite. So, Exhibit I goes to the issue of comparative fault, and the Navarra Defendants need it at trial. If it were sealed, their defense would be irreparably harmed.

However, the Navarra Defendants acknowledge that Exhibit I falls within the scope of the Protective Order. Pursuant to that Order, Exhibit I must be sealed, as discussed *supra*. (Charles Decl. in Opp., p.7, in Exh. A.) The fact that a document is sealed does not mean that it may not be used as evidence, but only that the document is sealed from the public. The court will need to make a determination if the document is sealed for trial. (Cal. Rules of Court, rule 2.550(a)(3)).

Standard for Sealing Documents

Public access to court proceedings is paramount. (Code Civ. Proc., § 124; *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, 1197 (*NBC Subsidiary*)). “[O]pen trials serve to demonstrate that justice is meted out fairly, thereby promoting public confidence in such governmental proceedings [citation]; ‘[m]ore importantly,’ open trials provide a means, ‘akin in purpose to the other checks and balances that infuse our system of government,’ by which citizens scrutinize and ‘check’ the use and possible abuse of judicial power [citation]; and finally, ‘with some limitations’ [citation], open trials serve to enhance the truth-finding function of the proceeding [citation].” (*NBC Subsidiary*, at pp. 1201–1202, quoting Justice Brennan's concurring opinion in *Richmond Newspapers, Inc. v. Virginia* (1980) 448 U.S. 555 [public access to criminal trial]; see *NBC Subsidiary*, at p. 1211 [concluding same principles apply to civil trials].) “ ‘Popular attendance at trials, in sum, substantially furthers the particular public purposes of that critical judicial proceeding. In that sense, public access is an indispensable element of the trial process itself....’ [Citation.]” (*NBC Subsidiary*, at p. 1202.) Court records are presumed to be open. (Cal. Rules of Court, rule 2.550(c).)

Public access, however, is not absolute. (*NBC Subsidiary, supra*, 20 Cal.4th at p. 1217.) Certain types of information are confidential and the public is not entitled to access that information. (See e.g. *Overstock.com, Inc. v. Goldman Sachs Grp., Inc.* (2014) 231 Cal.App.4th 471, 503.) To balance the competing policies, in order to prohibit the public from seeing certain documents in the court filed, the Court must expressly find:

- (1) There exists an overriding interest of the third party’s right to privacy that overcomes the right of public access to the records;
- (2) The overriding interest supports sealing the records;
- (3) A substantial probability exists that the overriding interest will be prejudiced if the records are not sealed;
- (4) The proposed sealing is narrowly tailored; and
- (5) No less restrictive means exist to achieve the overriding interest.

(Cal. Rules of Court, rule 2.550.)

The Motion is GRANTED in Part, and DENIED in Part.

Although Plaintiffs' Reply was due by August 25, 2026, no Reply has been filed.

Pursuant to this Court's Protective Order as discussed *supra*, the Motion is GRANTED as to Exhibit I. In light of this Court's Protective Order and the standards to seal this document, the Court specifically finds : there exists an overriding interest that overcomes the right of public access to Exhibit I; the overriding interest supports sealing Exhibit I; a substantial probability exists that the overriding interest will be prejudiced if Exhibit I is not sealed; the proposed sealing is narrowly tailored, to Exhibit I; and no less restrictive means exist to achieve the overriding interest. (Cal. Rules of Court, rule 2.550(d).)

Plaintiffs have waived their right to privacy in Exhibits A, A1, A2, A3, and H by placing the cause of Brian's death at issue in the two motions which these five Exhibits are offered to support.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the County Defendants shall prepare for the Court's signature a written order consistent with the Court's ruling, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court.

2:00 PM

LINE 2

23-CIV-03902

ELENA MARITI VS. COUNTY OF SAN MATEO, ET AL.

ELENA MARITI
COUNTY OF SAN MATEO

PRO SE

MOTION TO SET ASIDE DEFAULT PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 473(b)

TENTATIVE RULING:

The court GRANTS Dignity Health dba Sequoia Hospital (erroneously sued as Dignity Health and CommonSpirit Health (collectively Dignity defendants) motion to set aside default pursuant to Code of Civil Procedure section 473, subdivision (b).

The court grants the parties' requests for judicial notice, but as limited to the applicable law. Most of the documents are not for their truth but for notice only.

The Hon. Nancy L Fineman has been the single assigned judge in this case since it was filed on August 21, 2023 and has presided over multiple hearings in this case. The court file notes that there have been stipulations between the parties to make this case more efficient, e.g. stipulation and order to continue motion for summary judgment and motion to reset ADR scheduling, stipulation and order to file second amended complaint, and stipulation and order granting mutual stipulation reflecting correct Dignity defendant entity. Yet, when the Dignity defendants failed to timely file an answer to the second amended complaint, plaintiff Elena Martiti failed to provide notice to counsel for the Dignity defendants of this missed deadline even though seven days after the responsive pleading was due, plaintiff emailed counsel for the Dignity defendants for an extension to respond to discovery. (Paez Decl., ¶ 13, ex. B.) Instead, without notice, she sought and obtained default on May 20, 2026. This is the type of unprofessionalism and gamesmanship that the court abhors. Even though plaintiff is a pro per litigant, she is held to the same professional standards as attorneys. (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543.) As a leading practice guide explains:

[5:69.2] PRACTICE POINTER FOR PLAINTIFFS: If you're representing plaintiff and have had any contact with a lawyer representing defendant, don't even attempt to get a default entered without first giving the lawyer written or telephonic notice of your intent to request entry of default, and a reasonable time within which defendant's pleading must be filed to prevent your doing so. [*Fasuyi v. Permatex, Inc.* (2008) 167 CA4th 681, 701, 84 CR3d 351, 365 (quoting text); *McClain v. Kissler* (2019) 39 CA5th 399, 450-451, 251 CR3d 885, 925-926 & fn. 9 (J. Richman dissent.opn.) (citing text); *Lasalle v. Vogel* (2019) 36 CA5th 127, 135, 248 CR3d 263, 269]
